

LEASE TERMS SHEET

The Burton Inn — 24007 Vashon Highway SW, Vashon (Burton), Washington 98070

Draft v0.8 — July 23, 2026 — prepared from the July 2026 Rent Basis & Owner Return prospectus

The specific, negotiated terms of this Lease. This Terms Sheet, together with its Exhibits, incorporates the Standard Lease Terms and the Definitions & Glossary (neutral standard form, Version 1.6, July 23, 2026), which are attached and apply unchanged. Where this Terms Sheet or an Exhibit is silent, the Standard Lease Terms and Definitions & Glossary control; in the event of a conflict, this Terms Sheet and its Exhibits prevail. The economic structure implements the deal described in "The Burton Inn — Rent Basis & Owner Return" (July 2026).

1 • THE PARTIES

LANDLORD: The Burton Landing LLC, a Washington limited liability company.

TENANT (ENTITY): eBerry LLC, a Washington limited liability company.

TENANT ADDRESS: 9405 SW Gorsuch Road, Vashon, WA 98070.

2 • THE PREMISES

PROPERTY / BUILDING: The Burton Inn.

ADDRESS: 24007 Vashon Highway SW, Vashon (Burton), WA 98070.

PREMISES: The entire building, together with the underlying land, parking, and grounds. The Premises comprise the whole building and grounds leased to a single tenant; there are no Common Areas, no Proportionate Share, and no landlord relocation right (see Exhibit D, §D.2).

APPROXIMATE SQUARE FOOTAGE: Entire building (single-tenant).

LEGAL DESCRIPTION: See Exhibit A, attached.

PROPORTIONATE SHARE: 100% (single tenant; whole building).

3 • THE TERM

LEASE START DATE (COMMENCEMENT): July 1, 2026. Possession has been delivered to and accepted by Tenant.

TRIPLE-NET / UTILITIES START DATE: August 1, 2026 (Landlord carries the Premises' costs for July 2026).

RENT COMMENCEMENT DATE (BASE RENT): July 1, 2027. Base Rent is abated in full during Lease Year 1 and begins on the first day of Lease Year 2.

LEASE EXPIRATION DATE: June 30, 2036 (ten Lease Years).

LEASE YEARS: Each Lease Year runs July 1 – June 30. Lease Year 1 is July 1, 2026 – June 30, 2027 (see Exhibit D, §D.6).

EXTENSION OPTION: One (1) option to extend for five (5) years (July 1, 2036 – June 30, 2041), on the terms stated in Exhibit D, §D.6.

4 • FINANCIAL OBLIGATIONS

LEASE TYPE: Triple Net (NNN) with Percentage Rent. Under Article 1.7 of the Standard Lease Terms, the NNN and Percentage-Rent provisions of **Exhibit D** modify and supersede Article 1 (CAM Charges) to the extent set forth therein.

BASE RENT: \$1,650.00 per month (\$19,800 per year), fixed for the entire Term with no escalation; abated in full during Lease Year 1 (see Exhibit D, §D.4).

PERCENTAGE RENT: Ten percent (10%) of Gross Revenue in excess of the Breakpoint, in every Lease Year including Lease Year 1 (see Exhibit D, §D.5).

BREAKPOINT: \$198,000 per Lease Year (the natural breakpoint: annual Base Rent ÷ 10%); fixed for the Term, prorated only for a partial final Lease Year.

TRIPLE-NET EXPENSES (TENANT-PAID, AT ACTUAL COST): Real property taxes (currently about \$8,500/yr), Landlord's building-insurance premiums (currently about \$6,500/yr), and routine maintenance and upkeep (currently about \$375/mo) — about \$19,500/yr today. Begins August 1, 2026 and applies in every Lease Year including Lease Year 1 (see Exhibit D, §D.3).

DIRECT UTILITIES (TENANT-PAID): Electricity, water, sewer/septic, garbage, propane or heating fuel, telephone, internet/data (accounts in Tenant's name); all utilities are direct (see Exhibit D, §D.10).

SECURITY DEPOSIT: None.

GUARANTY: None (no Exhibit B guaranty is attached).

5 • OPERATIONS & SPECIAL CONDITIONS

PERMITTED USE: Operation of an inn with up to four (4) guest rooms; a cocktail bar and restaurant with beer, wine, and spirits service; ticketed chef's dinners, tastings, and culinary events; pop-up, takeaway, and counter food service; rental of the commercial kitchen as a commissary to licensed

food businesses; private events and venue hire; and ancillary uses including retail sale of merchandise and provisions. Tenant shall use the Premises solely for this Permitted Use, per Article 3 of the Standard Lease Terms.

DELIVERY CONDITION: As-Is (possession delivered and accepted July 1, 2026), subject to Landlord's capital-systems scope and retained obligations under Exhibit D (§§D.7–D.8).

PHASED OPENING: Phase 1 — guest rooms open (the "Opening Date"); Phase 2 — kitchen, bar, and events, targeted about three (3) months later. Lease Years run on the fixed calendar above regardless of the pace of Tenant's fit-out (see Exhibit D, §D.6).

6 • ADDITIONAL TERMS

The following supplements the Standard Lease Terms. Where a term cites an article of the Standard Lease Terms, that article governs except as expressly modified here or in Exhibit D.

6.1 This Lease is Triple Net (NNN) with Percentage Rent. The provisions that adapt the Standard Lease Terms to this deal — the NNN pass-through (which, under Article 1.7, supersedes the CAM provisions of Article 1), the Percentage Rent, the single-tenant/whole-building adaptations, the phased opening and Base Rent abatement, Tenant's Work, Landlord's capital systems, and the additional insurance — are set out in **Exhibit D (Triple-Net, Percentage Rent & Single-Tenant Amendment)**. Exhibit D modifies and supplements the Standard Lease Terms and controls over them to the extent of any conflict.

6.2 No special conditions apply other than those stated in this Terms Sheet and its Exhibits.

7 • NOTICES

All notices under this Lease shall be in writing and delivered by personal delivery, overnight courier, or certified mail (return receipt requested), to the addresses below, effective on delivery or refusal. Any notice under chapter 59.12 RCW shall be served strictly as Washington law requires (including RCW 59.12.040). Email does not constitute legal notice of default. Either party may change its notice address by written notice.

NOTICE TO LANDLORD: The Burton Landing LLC, 24007 Vashon Highway SW, Vashon, WA 98070.

NOTICE TO TENANT: eBerry LLC, 9405 SW Gorsuch Road, Vashon, WA 98070.

8 • INCORPORATION AND MERGER

This Lease Terms Sheet, together with its Exhibits, the **Standard Lease Terms**, and the **Definitions & Glossary** (neutral standard form, Version 1.6, July 23, 2026, attached and applying unchanged), constitutes the entire Commercial Lease Agreement for the Premises and supersedes all prior discussions, including the July 2026 prospectus (a planning document, not a contract, except as expressly implemented herein) and any letter of intent. Order of precedence: (1) this Terms Sheet; (2) the Exhibits, with Exhibit D controlling over the other Exhibits and over the Standard Lease Terms to the extent of any conflict; (3) the Standard Lease Terms; (4) the Definitions & Glossary. Amendments must be in a writing signed by both parties.

9 • INDEX OF EXHIBITS

- **Exhibit A** — Legal Description.
 - **Exhibit B** — Guaranty (none; not attached).
 - **Exhibit C** — Tenant Work Letter (Tenant-Funded Fit-Out).
 - **Exhibit D** — Triple-Net, Percentage Rent & Single-Tenant Amendment (includes Landlord's Capital Systems).
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SIGNATURES

By signing below, Landlord and Tenant agree to this Lease, comprising this Lease Terms Sheet (with its Exhibits), the Standard Lease Terms, and the Definitions & Glossary.

LANDLORD: The Burton Landing LLC, a Washington limited liability company

SIGNATURE: /sn1/

PRINTED NAME / TITLE: _____

DATE: /ds1/

TENANT: eBerry LLC, a Washington limited liability company

SIGNATURE: /sn2/

PRINTED NAME / TITLE: _____

DATE: /ds2/

Notary acknowledgments to be attached (required for a lease term exceeding two years under Washington law; see Exhibit D, §D.15).

EXHIBIT A: LEGAL DESCRIPTION

The Premises are legally described as follows (abbreviated legal description, King County records):

S 100 FT OF N 130 FT OF W 150 FT OF E 180 FT OF GOVT LOT 2 IN NE QTR STR 19-22-03

(That is: the south 100 feet of the north 130 feet of the west 150 feet of the east 180 feet of Government Lot 2 in the northeast quarter of Section 19, Township 22 North, Range 3 East, W.M., King County, Washington.) If the full legal description in Landlord's vesting deed differs, the vesting deed controls.

EXHIBIT B: GUARANTY

None. Tenant's obligations under this Lease are not guaranteed by any person or entity, and no guaranty is attached. (See Terms Sheet §1 and §4.)

EXHIBIT C: TENANT WORK LETTER (TENANT-FUNDED FIT-OUT)

This is the Tenant Work Letter referenced in Article 2.3 of the Standard Lease Terms. Tenant shall fund and perform the following fit-out, with a total anticipated investment of approximately Ninety-Eight Thousand Dollars (\$98,000). Line amounts are Tenant's planning estimates; the obligation is to complete the described scope lien-free, not to spend a particular amount.

- **Flooring** — repair, refinish, and/or replace flooring throughout the guest rooms and public areas.
- **Paint** — full interior repaint; exterior touch-up as reasonably needed for opening.
- **Kitchen retrofit and permits** — commercial kitchen build-out sufficient for restaurant, bar, chef's-dinner, and commissary operation, including equipment, ventilation, and all required health-department and building permits.
- **Furnishings** — guest-room, bar, and dining furnishings and fixtures appropriate to a small destination inn.

Phasing. Phase 1 (before the Opening Date): guest rooms, associated public areas, and life-safety basics. Phase 2 (target: approximately three months after the Opening Date): kitchen, bar, and events spaces.

Ownership. Tenant's Work that is attached to or incorporated into the building (including flooring, finishes, the kitchen retrofit, and built-in furnishings) is a permanent Alteration that remains Landlord's property at the end of the tenancy under Article 4.5 of the Standard Lease Terms, without compensation — a bargained-for element of the rent structure. Tenant's movable Trade Fixtures, equipment, and inventory remain Tenant's and are removed at the end of the Term per Article 4.5.

EXHIBIT D: TRIPLE-NET, PERCENTAGE RENT & SINGLE-TENANT AMENDMENT

This Exhibit D is the "NNN Lease Amendment" referenced in Article 1.7 of the Standard Lease Terms, and it further modifies and supplements the Standard Lease Terms to reflect that the Premises are the entire building leased to a single tenant and that the Lease includes Percentage Rent. Capitalized terms not defined here have the meanings in the Terms Sheet or the Definitions & Glossary. Where this Exhibit conflicts with the Standard Lease Terms, this Exhibit controls; where it conflicts with the Terms Sheet, the Terms Sheet controls.

D.1 Additional Definitions. For this Lease: "**Breakpoint**," "**Base Rent**," and "**Percentage Rent Rate**" have the values stated in Section 4 of the Terms Sheet. "**Lease Year**" is defined in §D.6. "**Opening Date**" is the date the guest rooms first open to paying guests (Phase 1). "**Gross Revenue**" is defined in §D.5.

D.2 Single-Tenant, Whole-Building Premises. The Premises are the entire Building and grounds, leased to Tenant as the sole tenant. Accordingly: there are no Common Areas and no Proportionate Share; every reference in the Standard Lease Terms to Common Areas, Proportionate Share, other tenants, or shared facilities is inapplicable; and **Article 12 (Relocation of Tenant) does not apply**. Tenant's rights extend to the entire Premises for the entire Term.

D.3 Triple-Net Expenses; Supersession of CAM (Article 1). This Lease is Triple Net. In lieu of the CAM Charges, estimate/reconciliation, and CAM audit provisions of Article 1 (Sections 1.3–1.6), Tenant shall pay, directly and at actual cost, from the Triple-Net Start Date stated in the Terms Sheet and in every Lease Year thereafter (including the remainder of Lease Year 1): (a) all real property taxes, assessments, and surface-water-management charges levied against the Premises for periods within the Term; (b) Landlord's building-insurance premiums (special-form property at replacement cost, plus liability for Landlord's ownership interest); and (c) all routine maintenance and upkeep of the Premises under §D.7. Landlord shall deliver each tax and premium statement to Tenant promptly on receipt, and Tenant shall pay it (or reimburse Landlord) at least thirty (30) days before delinquency or within thirty (30) days after invoice, respectively. There is no CAM estimate, no Proportionate Share, and no base year; costs pass through at actuals as they change. Landlord carries the Premises' costs for any portion of the Term before the Triple-Net Start Date.

D.4 Base Rent; Year 1 Abatement; No Escalation. Base Rent is the amount stated in Section 4 of the Terms Sheet, payable under Article 1.1. It is abated in full from the Commencement Date through the last day of Lease Year 1 and commences on the Rent Commencement Date stated in the Terms Sheet; the abatement applies to Base Rent only (Percentage Rent, Triple-Net Expenses, and utilities are payable during Lease Year 1). Base Rent is flat for the entire Term; the parties intend Percentage Rent (§D.5), against a fixed Breakpoint, to be the escalator.

D.5 Percentage Rent. In addition to Base Rent, for each Lease Year Tenant shall pay Landlord Percentage Rent equal to the Percentage Rent Rate applied to the amount by which Gross Revenue for that Lease Year exceeds the Breakpoint (each as stated in Section 4 of the Terms Sheet). Percentage Rent is Additional Rent under the Standard Lease Terms.

- **(a) Gross Revenue.** "Gross Revenue" means the entire amount of revenue, whether cash, card, electronic, or credit, and whether collected directly or through booking platforms, ticketing services, or other intermediaries (without deduction for platform or processing fees), generated by

or arising from business conducted at, from, or originating from the Premises — including guest-room and lodging charges; food and beverage sales; ticket sales for dinners, tastings, and events; pop-up and takeaway sales; commissary and kitchen-rental fees; venue, event, and private-hire fees; and merchandise sales — calculated from receipts, with no expense accounting.

- **(b) Exclusions.** Gross Revenue excludes only: sales, lodging, liquor, and similar taxes collected and remitted; bona fide refunds, credits, and voided transactions; tips and gratuities paid over to employees; proceeds of insurance or condemnation; security or reservation deposits until applied or forfeited; and proceeds from the sale of used furniture, fixtures, or equipment in the ordinary course of replacement.
- **(c) Breakpoint timing.** The full Breakpoint (not prorated) applies to Lease Year 1 notwithstanding the staged opening; for any partial final Lease Year, the Breakpoint is prorated by days.
- **(d) Statements and payment.** Within twenty (20) days after each calendar month from the Commencement Date, Tenant shall deliver a written statement of Gross Revenue for that month, broken out by line of business. Within thirty (30) days after each calendar quarter, Tenant shall pay Percentage Rent computed cumulatively for the Lease Year to date, less amounts already paid. Within ninety (90) days after each Lease Year, Tenant shall deliver a reconciliation statement certified by an officer or manager of Tenant, with payment of any deficiency; overpayment is credited to the next Percentage Rent due (or refunded within thirty (30) days after the Term).
- **(e) Records and audit.** Tenant shall keep complete point-of-sale (POS) and booking records for at least three (3) years after each Lease Year. Not more than once per Lease Year, on fifteen (15) days' notice, Landlord (or its accountant) may audit those records for the preceding two (2) Lease Years. Tenant shall pay any disclosed deficiency plus interest at the Article 1.2 rate within thirty (30) days; and if the understatement for the audited Lease Year exceeds the audit-cost threshold stated in Section 4 of the Terms Sheet (ten percent (10%)), Tenant shall also reimburse Landlord's reasonable audit cost. Records and audit results are confidential under Article 18.8.
- **(f) Operating covenant.** From the Opening Date, Tenant shall continuously operate the inn business in the ordinary course, consistent with the Permitted Use, subject to closures for the Exhibit C fit-out phases, casualty, condemnation, remodeling, repairs, and Force Majeure, and to seasonal closures not exceeding six (6) weeks per Lease Year in the aggregate. Nothing requires any line of business to meet any revenue level; if revenue falls, Percentage Rent falls with it.

D.6 Term; Lease Year; Commencement; Phased Opening; Extension. The "Commencement Date," "Rent Commencement Date," and "Lease Expiration Date" are as stated in Section 3 of the Terms Sheet. Each "Lease Year" runs July 1 – June 30 (Lease Year 1: July 1, 2026 – June 30, 2027); the final Lease Year ends on the last day of the Term; all Gross Revenue from and after the Commencement Date is included in the Lease Year in which it arises. Tenant intends to open in two phases (Phase 1 guest rooms; Phase 2 kitchen, bar, and events, targeted about three (3) months later), pursued with commercially reasonable diligence; because Lease Years run on the fixed calendar above regardless of the pace of Tenant's fit-out, delay in opening extends neither the Base Rent abatement nor any other milestone. **Extension option:** provided no Event of Default then exists, Tenant may extend the Term once for five (5) years (July 1, 2036 – June 30, 2041), on the same terms except this option and the Lease Year 1 abatement, by written notice to Landlord given 9–15 months before the end of the initial Term.

D.7 Maintenance; Landlord's Retained Scope (modifies Article 4). Because the Premises are the whole building, Tenant shall, at its sole cost, maintain the entire Premises — interior and exterior,

grounds, walkways, parking, guest rooms, kitchen equipment, and building systems — in clean, safe, operable condition (ordinary wear and tear and insured casualty excepted), including routine and preventative maintenance of the HVAC installed under §D.8 through a licensed contractor. **Section 4.1 (HVAC as a CAM item) does not apply.** Landlord shall, at its sole cost (not passed through), maintain and repair the roof and roof membrane, the structural foundation and load-bearing walls, and shall replace (as distinct from routine maintenance) the §D.8 capital systems except where necessitated by Tenant's negligence or misuse. Article 4.2's structural obligations otherwise stand.

D.8 Landlord's Capital Systems (Owner Scope). The following capital building systems are Landlord's scope and cost (approximately \$50,000 combined), separate from the rent structure: (a) a **fire suppression system** designed, permitted, and installed as required by code for the Permitted Use; and (b) HVAC serving the Premises. Landlord shall complete each as needed to support Tenant's phased opening — any component legally required for Phase 1 before the Opening Date, and the remainder before the Phase 2 opening — subject to Force Majeure and Tenant cooperation. Routine maintenance thereafter is Tenant's (§D.7); full replacement is Landlord's.

D.9 Utilities (modifies Article 5). Tenant shall establish accounts in its own name and pay all utilities serving the Premises directly (electricity, water, sewer/septic, garbage, propane or heating fuel, telephone, internet). Because there are no Common Areas, **Section 5.2 (shared and common-area utilities via CAM) does not apply**; there are no shared utilities.

D.10 Insurance (supplements Article 6). In addition to the coverage required by Article 6, Tenant shall carry, from the date any alcohol is served, **liquor liability insurance** of at least \$1,000,000 per occurrence; and **business-income insurance** covering at least twelve (12) months of Rent. Tenant's liability policies (including liquor liability) name Landlord (and Landlord's lender, if any) as additional insured on a primary, non-contributory basis.

D.11 Assignment; Ordinary-Course Occupancies (supplements Article 8). The following are licenses in the ordinary course of the Permitted Use, not assignments or subleases, and require no consent: overnight guest stays; event and venue hires; ticketed dinners; pop-up arrangements with visiting chefs or vendors; and hourly or short-term commissary-kitchen use by licensed food businesses. Tenant remains fully responsible for the Premises and all such occupants, and all revenue therefrom is Gross Revenue. Article 8 otherwise governs assignments and subleases.

D.12 No Option to Purchase. Tenant has expressed a goal of purchasing the building around Lease Year 10. This is a goal only: nothing in this Lease grants Tenant an option to purchase, right of first refusal, or right of first offer, and nothing obligates either party to transact. Any sale would be by separate written agreement.

D.13 Percentage Rent in Default Damages (supplements Article 9). For purposes of computing damages under Article 9, Percentage Rent for future periods is deemed to equal the average annual Percentage Rent payable during the thirty-six (36) months preceding the default (or the actual period, if shorter).

D.14 SNDA. As a condition to subordination of this Lease to any future mortgage or deed of trust under Article 10.1, the holder shall deliver a commercially reasonable non-disturbance agreement recognizing this Lease (including the Base Rent abatement and Percentage Rent structure) so long as no Event of Default exists.

D.15 Acknowledgment; Recording (supplements Article 18.9). Because the Term exceeds two (2) years, the parties shall execute and acknowledge this Lease before a notary. Notwithstanding Article 18.9, at either party's request the parties shall execute a memorandum of lease in recordable form (omitting economic terms), recorded at the requesting party's cost; the Lease itself shall not be recorded.

End of the Lease Terms Sheet and Exhibits for The Burton Inn — Draft v0.8, July 23, 2026. To be read with the attached Standard Lease Terms and Definitions & Glossary (neutral standard form, Version 1.6, July 23, 2026).

STANDARD LEASE TERMS

Standard form — the Landlord, Tenant, and Property are identified in the Lease Terms Sheet

Version 1.6, July 23, 2026

***Applicability.** This document contains the standard operating and legal terms for the Property (these Standard Lease Terms and the Definitions & Glossary). This form is neutral: it identifies no party or property by name, and every deal-specific and property-specific term — including the parties, the Property, and all financial terms — is stated in the Lease Terms Sheet of the Tenant's specific Commercial Lease Agreement and its Exhibits. Capitalized terms used herein are defined either in the Definitions & Glossary below or in that Lease Terms Sheet. Landlord may amend the Standard Lease Terms and the Definitions & Glossary from time to time as the standard form; such amendments apply only to Commercial Lease Agreements executed after the effective date of the amendment, and the version incorporated into any specific Lease shall be as stated in the Lease Terms Sheet for that Lease.*

STANDARD LEASE TERMS

ARTICLE 1 | RENT AND FINANCIAL OBLIGATIONS

1.1 Payment of Base Rent. Tenant shall pay Base Rent in equal monthly installments in advance on or before the first (1st) day of each calendar month during the Term. Rent shall be paid via electronic funds transfer (ACH) to an account designated by Landlord. Tenant shall pay all Rent without any prior demand, deduction, set-off, or counterclaim.

1.2 Late Charges and Interest. Time is of the essence. If any payment of Rent is not received by Landlord by the fifth (5th) day of the month, Tenant shall pay a late charge equal to five percent (5%) of the overdue amount. Unpaid amounts shall bear interest from the due date until paid at the lesser of twelve percent (12%) per annum or the maximum rate permitted by Washington law.

1.3 CAM Charges (Common Area Maintenance). In addition to Base Rent, Tenant shall pay its Proportionate Share of all costs and expenses incurred by Landlord in operating, managing, maintaining, and repairing the Building and Common Areas ("CAM Charges"). CAM Charges include:

- **Taxes:** All real property taxes, assessments, King County surface water management fees, and transit taxes.
- **Insurance:** Premiums for Landlord's commercial general liability, property, earthquake, and loss of rents insurance.
- **Maintenance & Common-Area Utilities:** Costs for water, sewer, trash, electricity for common areas, landscaping, snow/ice removal, and parking lot maintenance.
- **Management:** A property management fee not to exceed five percent (5%) of the gross revenues of the Building, plus the cost of on-site personnel directly involved in operations.
- **Capital Improvements:** The cost of those capital improvements required by new governmental laws (e.g., Washington Clean Buildings Act) or reasonably intended to reduce CAM Charges,

amortized over their useful life per GAAP, with 8% interest on the unamortized balance.

1.4 Exclusions from CAM Charges. CAM Charges shall not include: leasing commissions or legal fees for procuring tenants; costs of exclusive Tenant Improvements; Landlord's corporate/income taxes; capital improvements (other than those set forth in Section 1.3, above); debt service on the property; costs arising from Landlord's gross negligence; or costs to remediate Hazardous Materials present prior to the Lease Start Date.

1.5 Estimated Payments and Reconciliation. Landlord shall provide an annual good-faith estimate of CAM Charges. Tenant shall pay 1/12th of its share monthly. Within 120 days after the calendar year, Landlord shall furnish a reconciliation statement. Tenant shall pay any deficiency within 30 days; Landlord shall credit any overage to future Rent.

1.6 Tenant's Audit Rights. Once per year, provided Tenant is not in default, Tenant may audit the preceding year's CAM records using an independent CPA on an hourly basis. Request must be made within 90 days of the reconciliation statement. If Landlord overcharged by more than 5%, Landlord pays the audit cost and refunds the overage. All findings must remain strictly confidential.

1.7 NNN Variation. If the Lease Terms Sheet (Financial Obligations) designates this Lease as Triple Net (NNN), the provisions of the NNN Lease Amendment (Exhibit D of the Lease Terms Sheet) shall modify or supersede this Article 1 to the extent set forth therein.

ARTICLE 2 | DELIVERY AND ACCEPTANCE OF PREMISES

2.1 Delivery of Possession. Landlord shall use commercially reasonable, diligent efforts to deliver possession of the Premises to Tenant on or before the Lease Start Date specified in the Lease Terms Sheet, in the delivery condition (if any) specified in the Lease Terms Sheet. Landlord shall not be liable for any damage or loss arising from a delay in delivering possession, except as expressly set forth in Section 2.2, below.

2.2 Delayed Possession; Tenant's Cancellation Right. If Landlord is unable to deliver possession of the Premises in the required delivery condition within sixty (60) days after the Lease Start Date, then (a) Rent shall abate for the period of the delay until possession is delivered, and (b) Tenant may, at its option, cancel this Lease by written notice to Landlord delivered at any time before possession is tendered. Upon such cancellation, Landlord shall promptly refund to Tenant all prepaid Rent and the Security Deposit, and neither party shall have any further obligation to the other, except for obligations that expressly survive termination. This Section 2.2 states Tenant's sole remedy for delayed delivery, and is subject to extension for Force Majeure and for delays caused by Tenant.

2.3 Acceptance "As-Is." Except for (a) any Landlord delivery obligations expressly stated in the Lease Terms Sheet or in a Tenant Work Letter (Exhibit C of the Lease Terms Sheet), and (b) latent defects of which Tenant gives notice under Section 2.4, Tenant accepts the Premises in their "as-is, where-is" condition as of the date possession is delivered. Tenant acknowledges that it has had an adequate opportunity to inspect the Premises and that, except as expressly provided in this Lease, Landlord has made no representation or warranty regarding the condition of the Premises, their suitability for Tenant's use, or compliance with Tenant's specific requirements.

2.4 Punch List. If Tenant fails to deliver to Landlord a written list of defects in any Landlord-performed work within thirty (30) days after delivery of possession, Tenant shall be deemed to have accepted the Premises in their then-existing condition. If Tenant timely delivers such

a list, Landlord shall correct the listed items that are Landlord's responsibility with reasonable diligence, and the parties shall conduct one inspection-and-cure cycle to confirm completion. Minor defects that do not prevent Tenant from using the Premises for the Permitted Use shall not delay the Rent Commencement Date.

2.5 Completion Delays Do Not Extend Commencement. Except as expressly provided in Section 2.2, the time needed to complete punch-list items or any Tenant Improvements shall not delay the Rent Commencement Date, and any delay attributable to Tenant or Tenant's contractors shall not abate or postpone Rent.

ARTICLE 3 | USE OF PREMISES AND COMPLIANCE WITH LAWS

3.1 Permitted Use. Tenant shall use the Premises solely for the Permitted Use specified in the Lease Terms Sheet. Any change in use requires Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed. Tenant shall operate in a reputable manner.

3.2 Prohibited Uses and Federal Carve-Out. Tenant shall not create a nuisance, emit objectionable odors or noise, or overload floors. *Federal Law Carve-Out:* Notwithstanding any permissive laws of Washington State, Tenant shall not engage in any activity that violates Federal law (strictly prohibiting cannabis cultivation, distribution, or sale unless expressly permitted via a separate Addendum).

3.3 Compliance with Laws and the ADA. Tenant shall comply with all Applicable Laws. *Tenant's ADA Responsibility:* As between Landlord and Tenant, Tenant assumes the cost and responsibility for ensuring that the interior of the Premises, Tenant's operations, and any Alterations comply with the ADA and Washington accessibility codes. Tenant indemnifies Landlord against third-party ADA claims arising from the interior.

3.4 Environmental Compliance (Washington MTCA). Tenant shall strictly comply with the Washington Model Toxics Control Act. Tenant shall not permit Hazardous Materials on the Premises, except for supplies and materials customarily used for the Permitted Use, kept and used in commercially reasonable quantities and in strict compliance with Applicable Laws and manufacturer instructions.

3.5 Environmental Indemnification. Tenant unconditionally indemnifies Landlord against all claims, cleanup costs, and liabilities arising from Tenant's release or storage of Hazardous Materials.

ARTICLE 4 | MAINTENANCE, REPAIRS, AND ALTERATIONS

Tenant's Maintenance Obligations. Tenant shall, at its sole cost, maintain the interior of the Premises (walls, floors, plumbing fixtures, interior glass, and lighting) in clean, safe condition.

4.1 HVAC. Landlord arranges routine and preventative maintenance of the HVAC systems serving the Premises through a licensed HVAC contractor, and the cost is included in CAM Charges as part of Tenant's Proportionate Share. If an HVAC unit requires full replacement through no fault of Tenant, Landlord shall replace it and amortize the cost into CAM Charges. Tenant has no separate obligation to contract for or maintain HVAC service.

4.2 Landlord's Obligations. Subject to CAM reimbursement, Landlord shall maintain the structural foundation, load-bearing walls, exterior roof membrane, and Common Areas.

4.3 Alterations. Tenant shall not make Alterations without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed for non-structural work under \$5,000.

4.4 Mechanic's Liens and Protection. Tenant shall pay promptly for all labor and materials. Tenant must give Landlord 10 days' written notice before commencing work. Landlord may post notices to protect the property from lien claims. If a lien is filed, Tenant must discharge or bond it within 15 days.

4.5 Surrender and Abandonment. Upon expiration or earlier termination, Tenant shall surrender the Premises broom-clean and in good condition, ordinary wear and tear and insured casualty excepted, and shall remove all of Tenant's personal property and Trade Fixtures, repairing any damage caused by removal. Permanent Alterations shall remain Landlord's property unless Landlord, at the time consent was given, conditioned its consent on removal. If Tenant fails to remove its personal property or Trade Fixtures by the end of the Term, such items shall be deemed abandoned, and Landlord may remove, store, sell, or dispose of them at Tenant's expense, without liability and without waiving any other remedy. A final walk-through will be conducted and all keys and access devices returned to Landlord.

ARTICLE 5 | UTILITIES

5.1 Direct Utilities. Tenant shall pay directly to the applicable utility provider all charges for utilities separately metered or otherwise attributable to the Premises, as specified in the Lease Terms Sheet (Financial Obligations) (including, by default, electricity, natural gas, telephone, and internet/data service).

5.2 Shared and Common-Area Utilities. Where utilities are not separately metered to the Premises (including, by default, water, sewer, trash, and common-area electricity), Tenant shall pay its Proportionate Share as part of CAM Charges, or as otherwise specified in the Lease Terms Sheet or any applicable Exhibit.

5.3 Tenant's Obligation to Establish Service. Tenant shall promptly establish and maintain accounts in Tenant's own name for all direct utilities, and shall keep such accounts current throughout the Term. Tenant shall provide Landlord with evidence of active service upon request.

5.4 Interruptions. Subject to Article 18, Section 18.3 (Utility Interruptions), Landlord shall not be liable for interruptions in utility service except those caused by Landlord's gross negligence or willful misconduct.

ARTICLE 6 | INSURANCE AND INDEMNIFICATION

6.1 Tenant's Required Insurance. Tenant must carry: \$1M per occurrence / \$2M aggregate Commercial General Liability (CGL); "Special Form" Property Insurance covering 100% of Tenant's property; and Washington State Workers' Compensation coverage as and to the extent required by Applicable Laws for Tenant's employees, if any. If Tenant has no employees, Tenant shall upon request certify that fact to Landlord in writing.

6.2 Additional Insureds. CGL policies must name Landlord and Landlord's lender as Additional Insureds on a primary/non-contributory basis.

6.3 Mutual Waiver of Subrogation. Landlord and Tenant mutually waive rights of recovery against each other for any loss covered by the required property insurance.

6.4 General Indemnification. Tenant indemnifies and defends Landlord against claims arising from Tenant's use of the Premises or breach of Lease, except to the extent caused by Landlord's gross negligence.

6.5 Waiver of Immunity. Landlord and Tenant each specifically and expressly waive any immunity that each may be granted under the Washington State Industrial Insurance Act, Title 51 RCW. Neither party's indemnity obligations under this Lease shall be limited by any limitation on the amount or type of damages, compensation, or benefits payable to or for any third party under the Worker Compensation Acts, Disability Benefit Acts or other employee benefit acts.

ARTICLE 7 | CASUALTY AND CONDEMNATION

7.1 Casualty. If damaged by fire or casualty, Landlord shall estimate repair time. If repairable within 180 days, Landlord shall repair the structure, and Rent abates proportionally. If not repairable within 180 days, Landlord may terminate. Landlord has no duty to repair Tenant's property.

7.2 Condemnation. If by exercise of eminent domain (i) more than twenty-five percent (25%) of the rentable floor area of the Premises is taken, or (ii) any portion of the parking, access, or Common Areas is taken in a manner that, in Tenant's reasonable judgment, materially impairs Tenant's ability to operate for the Permitted Use, this Lease shall terminate as of the date of the taking. For any lesser taking, this Lease shall continue, with Rent equitably abated in proportion to the area or utility lost. Landlord receives the entire condemnation award; Tenant may make a separate claim against the condemning authority for Tenant's moving expenses, Trade Fixtures, and loss of business goodwill, only to the extent recoverable independently under Applicable Laws.

ARTICLE 8 | ASSIGNMENT AND SUBLETTING

8.1 Consent. Tenant shall not assign or sublet without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed. Landlord may assign its interest under this Lease without Tenant's consent.

8.2 Recapture. Upon Tenant's request to assign or sublet, Landlord has 30 days to elect to recapture the space and terminate the Lease for that portion.

8.3 Excess Rent. If Tenant subleases for a profit, 50% of the excess rent (after deducting amortized broker and TI costs) shall be paid to Landlord.

ARTICLE 9 | DEFAULT AND REMEDIES

9.1 Events of Default. Defaults include: (a) failure to pay Rent (5 days after notice); (b) failure to perform non-monetary obligations (15 days after notice); (c) abandonment; (d) insolvency.

9.2 Landlord's Default and Cure. Landlord shall not be in default unless Landlord fails to perform obligations required of Landlord within 30 days after notice by Tenant to Landlord, provided that, if the nature of such default is that it cannot be cured within such 30 day period, Landlord shall not be in default if Landlord commences such cure within 30 days of notice by Tenant and diligently pursues such cure to completion. If Landlord fails to cure any such default within the allotted time,

Tenant's sole remedy shall be to seek actual money damages (but not consequential or punitive damages) for loss arising from Landlord's failure to discharge its obligations under this Lease. Nothing herein contained shall relieve Landlord from its duty to perform any of its obligations to the standard prescribed in this Lease. Any notice periods granted herein shall be deemed to run concurrently with and not in addition to any default notice periods required by law.

9.3 Remedies. Landlord shall have the following remedies upon an Event of Default. Landlord's rights and remedies under this Lease shall be cumulative and non-exclusive.

9.4 Termination of Lease. Landlord may terminate Tenant's interest under the Lease, but no act by Landlord other than notice of termination from Landlord to Tenant shall terminate this Lease. The Lease shall terminate on the date specified in the notice of termination. Upon termination of this Lease, Tenant will remain liable to Landlord for damages in an amount equal to Rent and other sums that would have been owing by Tenant under this Lease for the balance of the Term, less the net proceeds, if any, of any reletting of the Premises by Landlord subsequent to the termination, after deducting all of Landlord's Reletting Expenses (as defined below). Landlord shall be entitled to either collect damages from Tenant monthly on the days on which Rent or other amounts would have been payable under the Lease, or alternatively, Landlord may accelerate Tenant's obligations under the Lease and recover from Tenant: (i) unpaid Rent which had been earned at the time of termination; (ii) the amount by which the unpaid Rent which would have been earned after termination until the time of award exceeds the amount of Rent loss that Tenant proves could reasonably have been avoided; (iii) the amount by which the unpaid Rent for the balance of the term of the Lease after the time of award exceeds the amount of Rent loss that Tenant proves could reasonably be avoided (discounting such amount by the discount rate of the Federal Reserve Bank of San Francisco at the time of the award, plus 1%); and (iv) any other amount necessary to compensate Landlord for all the detriment proximately caused by Tenant's failure to perform its obligations under the Lease, or which in the ordinary course would be likely to result from the Event of Default, including without limitation Reletting Expenses described below.

9.5 Re-Entry and Reletting. Landlord may continue this Lease in full force and effect, and without demand or notice, re-enter and take possession of the Premises or any part thereof, expel the Tenant from the Premises and anyone claiming through or under the Tenant, and remove the personal property of either. Landlord may relet the Premises, or any part of them, in Landlord's or Tenant's name for the account of Tenant, for such period of time and at such other terms and conditions as Landlord, in its discretion, may determine. Landlord may collect and receive the rents for the Premises. To the fullest extent permitted by law, the proceeds of any reletting shall be applied: first, to pay Landlord all Reletting Expenses (defined below); second, to pay any indebtedness of Tenant to Landlord other than Rent; third, to the Rent due and unpaid hereunder; and fourth, the residue, if any, shall be held by Landlord and applied in payment of other or future obligations of Tenant to Landlord as the same may become due and payable, and Tenant shall not be entitled to receive any portion of such revenue. Re-entry or taking possession of the Premises by Landlord under this Section shall not be construed as an election on Landlord's part to terminate this Lease, unless a notice of termination is given to Tenant. Landlord reserves the right following any re-entry or reletting, or both, under this Section to exercise its right to terminate the Lease. Tenant will pay Landlord Rent and other sums which would be payable under this Lease if repossession had not occurred, less the net proceeds, if any, after reletting the Premises and after deducting Landlord's Reletting Expenses. "Reletting Expenses" is defined to include all expenses incurred by Landlord in

connection with reletting the Premises, including without limitation, all repossession costs, brokerage commissions and costs for securing new tenants, attorneys' fees, remodeling and repair costs, costs for removing persons or property, costs for storing Tenant's property and equipment, and costs of tenant improvements and rent concessions granted by Landlord to any new Tenant, prorated over the life of the new lease.

9.6 Waiver of Redemption Rights. Tenant, for itself, and on behalf of any and all persons claiming through or under Tenant, including creditors of all kinds, hereby waives and surrenders all rights and privileges which they may have under any present or future law, to redeem the Premises or to have a continuance of this Lease for the Term, or any extension thereof.

9.7 Nonpayment of Additional Rent. All costs which Tenant is obligated to pay to Landlord pursuant to this Lease shall in the event of nonpayment be treated as if they were payments of Rent, and Landlord shall have the same rights it has with respect to nonpayment of Rent.

9.8 Failure to Remove Property. If Tenant fails to remove any of its property from the Premises at Landlord's request following an uncured Event of Default, Landlord may, at its option, remove and store the property at Tenant's expense and risk. If Tenant does not pay the storage cost within five (5) days of Landlord's request, Landlord may, at its option, have any or all of such property sold at public or private sale (and Landlord may become a purchaser at such sale), in such manner as Landlord deems proper, without notice to Tenant. Landlord shall apply the proceeds of such sale: (i) to the expense of such sale, including reasonable attorneys' fees actually incurred; (ii) to the payment of the costs or charges for storing such property; (iii) to the payment of any other sums of money which may then be or thereafter become due Landlord from Tenant under any of the terms hereof; and (iv) the balance, if any, to Tenant. Nothing in this Section shall limit Landlord's right to sell Tenant's personal property as permitted by law or to foreclose Landlord's lien for unpaid Rent, if any.

ARTICLE 10 | SUBORDINATION, ATTORNMENT, AND ESTOPPEL CERTIFICATES

10.1 Subordination. This Lease is subordinate to any current or future mortgage or ground lease. Tenant shall attorn to any successor-in-interest upon foreclosure.

10.2 Estoppel Certificates. Within ten (10) days after written request from Landlord, Tenant shall execute, acknowledge, and deliver to Landlord (or any prospective purchaser or lender Landlord designates) a written estoppel certificate certifying, to the extent true, each of the following: (a) that this Lease is unmodified and in full force and effect (or, if modified, stating the modifications); (b) the Commencement Date, Rent Commencement Date, and Expiration Date; (c) the amount of Base Rent and CAM Charges and the date through which each has been paid; (d) the amount of any Security Deposit held by Landlord; (e) that, to Tenant's knowledge, neither party is in default (or specifying any claimed default); (f) that Tenant has accepted and is in possession of the Premises; (g) that there are no uncured Landlord obligations or unapplied concessions, free-rent periods, or allowances (or specifying any); (h) that Tenant has no current offsets, defenses, or claims against Rent (or specifying any); and (i) such other factual matters as Landlord, its lender, or a prospective purchaser may reasonably request. Tenant's failure to timely deliver the certificate shall be conclusive that the facts stated in Landlord's proposed form are correct.

ARTICLE 11 | LANDLORD'S RIGHT OF ENTRY

Landlord may enter upon 24 hours' notice for inspections, repairs, or to show the space. In emergencies, Landlord may enter without notice.

ARTICLE 12 | RELOCATION OF TENANT

Landlord may, upon 60 days' notice, relocate Tenant to another suite within the same Building or parcel featuring substantially similar square footage and frontage. Landlord shall pay reasonable out-of-pocket moving and rewiring costs.

ARTICLE 13 | HOLDING OVER

If Tenant remains in the Premises after expiration of the Lease without Landlord's consent, it constitutes an unlawful detainer, and Base Rent increases to 150%. Landlord's acceptance of holdover rent does not create a periodic (month-to-month) tenancy unless a separate written agreement is signed, and the tenancy shall be a holdover tenancy at sufferance, which may be terminated pursuant to Washington law.

ARTICLE 14 | BROKERS AND AGENCY

Tenant warrants it has dealt with no brokers other than those explicitly named, and indemnifies Landlord against any unlisted broker claims.

ARTICLE 15 | NOTICES

15.1 Delivery. Legal notices must be in writing and sent to the addresses set forth in the Lease Terms Sheet (Notice Addresses), via Personal Delivery, Overnight Courier, or Certified Mail.

Notwithstanding anything herein, any notice required under chapter 59.12 RCW shall be served strictly in the manner required by Washington law (including RCW 59.12.040). Email is invalid for legal default notices.

ARTICLE 16 | DISPUTE RESOLUTION AND WAIVER OF JURY TRIAL

16.1 Venue and Fees. Governed by Washington law. Venue is King County. Prevailing party recovers attorney fees.

16.2 Waiver of Jury Trial. TO THE MAXIMUM EXTENT PERMITTED BY WASHINGTON LAW, LANDLORD AND TENANT KNOWINGLY, VOLUNTARILY, AND INTENTIONALLY WAIVE ANY RIGHT TO TRIAL BY JURY IN ANY CIVIL ACTION, PROCEEDING, OR COUNTERCLAIM (INCLUDING UNLAWFUL DETAINER ACTIONS) BROUGHT BY EITHER PARTY AGAINST THE OTHER ON ANY MATTER ARISING OUT OF THIS LEASE.

ARTICLE 17 | REPRESENTATIONS AND WARRANTIES

17.1 Authority to Execute. Each signatory represents and warrants that they have full corporate, partnership, limited liability company, or other organizational authority to execute this Lease on behalf of the party indicated; that all necessary internal authorizations have been obtained; and that the entity executing this Lease is duly organized, validly existing, and in good standing under the laws of its state of formation and qualified to do business in the State of Washington.

17.2 OFAC and Anti-Money-Laundering Compliance. Each party represents and warrants that it, its principals, and its beneficial owners are not (a) listed on the Specially Designated Nationals and Blocked Persons List maintained by the U.S. Office of Foreign Assets Control (OFAC) or on any similar list maintained by any U.S. government agency; (b) a person with whom U.S. persons are restricted from doing business under the USA PATRIOT Act, Executive Order 13224, or any other U.S. anti-terrorism or anti-money-laundering law; or (c) otherwise subject to U.S. sanctions. Each party shall promptly notify the other if this representation becomes untrue at any time during the Term.

17.3 No Brokers (Other Than Disclosed). Each party represents that it has not engaged any broker, finder, or agent in connection with this Lease other than those disclosed in the Lease Terms Sheet, and each party indemnifies the other against any claim by an undisclosed broker arising from its own conduct.

17.4 Accuracy of Application Information. Tenant represents that all financial statements, credit information, and other materials submitted in connection with the application and Lease execution are true and complete in all material respects as of the date submitted.

ARTICLE 18 | MISCELLANEOUS PROVISIONS

18.1 Security Deposit. Held by Landlord (no trust account or interest required). May be applied to defaults; Tenant must replenish within 10 days. Balance returned within 30 days of surrender.

18.2 Limitation of Liability (Non-Recourse). Landlord's liability is strictly limited to its equity interest in the Building. Landlord is never liable for Tenant's consequential damages or lost profits.

18.3 Utility Interruptions. Landlord is not liable for infrastructure or utility outages, nor do they constitute eviction.

18.4 Quiet Enjoyment. Provided Tenant performs all obligations, Tenant may peaceably enjoy the Premises.

18.5 Severability and Force Majeure. Invalid provisions are severed. Delays in performance caused by acts of God, fire, flood, earthquake, pandemic or epidemic, war, terrorism, civil disturbance, government orders or shutdowns, labor disputes or strikes, supply chain disruptions, or other causes beyond the reasonable control of the affected party shall extend the time for that party's performance by the duration of the delay; provided, however, that Tenant's obligation to timely pay Rent shall not be excused or delayed for any reason.

18.6 No Partnership or Joint Venture. Nothing contained in this Lease shall be deemed or construed to create a partnership, joint venture, agency, employment, or any other relationship between Landlord and Tenant other than that of landlord and tenant.

18.7 Counterparts and Electronic Signatures. This Lease may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Signatures transmitted by facsimile, email (PDF), or executed via a recognized electronic signature platform (e.g., DocuSign, Adobe Sign) shall have the same force and effect as original ink signatures, except where Washington law requires original signatures (such as notarized instruments).

18.8 Confidentiality. Each party agrees to keep confidential the financial and economic terms of this Lease and any non-public information disclosed in connection herewith, except as required by law, court order, or regulatory request, and except as reasonably necessary for disclosure to lenders, prospective lenders, prospective purchasers or assignees, attorneys, accountants, insurers, or other professional advisors who are themselves bound by similar confidentiality obligations.

18.9 No Recording; Memorandum of Lease. Tenant shall not record this Lease, or any memorandum, affidavit, or other document referencing this Lease, in the real property records of any jurisdiction without Landlord's prior written consent. Any recording in violation of this provision shall constitute a material default and shall be removable by Landlord at Tenant's sole cost.

18.10 Entire Agreement; Amendments. This Lease (comprising the Lease Terms Sheet with its Exhibits, these Standard Lease Terms, and the Definitions & Glossary) constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, and agreements, including the Letter of Intent. No amendment is effective unless in writing and signed by both parties; provided, however, that Landlord may amend the Standard Lease Terms and the Definitions & Glossary from time to time as the standard form for the Property, with such amendments applying only to leases executed after the effective date of such amendment.

18.11 Successors and Assigns. This Lease shall be binding upon and inure to the benefit of the parties and their respective heirs, executors, administrators, successors, and (to the extent permitted) assigns.

18.12 Headings. Article and section headings are for convenience only and shall not affect the interpretation of this Lease.

18.13 Submission Not an Offer. The submission of this Lease or any summary of terms by Landlord to Tenant for review or signature does not constitute an offer to lease, a reservation of, or an option for the Premises. This Lease becomes effective and binding only upon full execution and delivery by both Landlord and Tenant.

18.14 No Light, Air, or View Easement. No diminution or shutting off of light, air, or view by any structure that may be erected on lands adjacent to the Building shall affect this Lease, abate Rent, or impose any liability on Landlord. Tenant is granted no easement for light, air, or view.

18.15 Approximate Measurements. All square footage, dimension, and Proportionate Share figures stated in this Lease are approximate, are mutually agreed and conclusive for all purposes of this Lease, and shall not be subject to remeasurement. No variance between any stated figure and the actual measurement of the Premises or the Building shall change the Rent, the Proportionate Share, or any other obligation under this Lease, or give rise to any claim, offset, or adjustment by either party.

ARTICLE 19 | SITE RULES AND REGULATIONS

19.1 Sidewalks and corridors must remain unobstructed.

19.2 Plumbing fixtures shall not be misused (no grease or caustic chemicals).

19.3 Trash must be stored inside until moved to dumpsters. Cardboard must be broken down.

19.4 No objectionable odors or loud noises may emanate from the space.

19.5 Deliveries must not block main entrances or parking.

19.6 No animals permitted without Landlord consent, except service animals as defined by Applicable Laws. (No certification beyond law is required.)

19.7 Smoking and vaping are strictly prohibited inside and within 25 feet of entrances or windows per RCW 70.160.

ARTICLE 20 | SIGNAGE AND PARKING

20.1 Signage. No exterior signs or window decals (>20% of glass) without Landlord's written consent and required municipal permits. Tenant must remove signs and repair fascia upon vacating.

20.2 Parking. Tenant and employees must park in designated Employee areas. No vehicle storage over 48 hours. Landlord reserves the right to tow violators.

DEFINITIONS & GLOSSARY

This glossary defines the capitalized terms used throughout the Commercial Lease Agreement, including the Lease Terms Sheet and these Standard Lease Terms. Terms appear in alphabetical order.

Additional Rent. Any and all sums of money or charges required to be paid by Tenant under this Lease other than Base Rent, including but not limited to CAM Charges, late charges, interest, audit fees, and indemnification payments.

Alterations. Any physical additions, improvements, cosmetic updates, or architectural changes made to the interior or exterior of the Premises by the Tenant after the Lease Start Date.

Applicable Laws. All present and future federal, state, county, and municipal laws, ordinances, regulations, and building codes applicable to the Property, including but not limited to King County zoning codes, the Washington State Building Code, the Americans with Disabilities Act (ADA), and environmental regulations.

Base Rent. The fixed, minimum monthly amount Tenant must pay Landlord for the right to occupy the Premises, excluding CAM Charges, utilities, and late fees.

Building. The entire physical structure and underlying real property in which the Premises are located, including the roof, foundation, exterior walls, and shared utility systems.

CAM Charges (Common Area Maintenance). The costs and expenses incurred by the Landlord to operate, repair, maintain, and manage the Building and the Common Areas. These are passed through to the Tenant based on their Proportionate Share.

Common Areas. All areas and facilities outside the Premises that are provided and designated by Landlord for the general, non-exclusive use of Landlord, Tenant, other tenants of the Building, and their respective employees and invitees. This includes parking lots, landscaped areas, sidewalks, exterior lighting, driveways, and shared trash enclosures.

Event of Default. A material breach of the Lease Agreement by the Tenant, such as failing to pay Rent, abandoning the space, or violating the Site Rules, which grants Landlord the right to pursue

eviction or other legal remedies as outlined in Article 9 of these Standard Lease Terms.

Good Faith Deposit. The initial, refundable sum of money submitted by the Applicant alongside the Letter of Intent to demonstrate sincere interest in leasing the Premises while background checks and lease drafting occur.

Guarantor. The individual person (or persons) who signs the Unconditional Guaranty of Lease, making them personally and financially responsible for the Tenant's (the business entity's) obligations, debts, and performance under the Lease.

Hazardous Materials. Any substance, chemical, waste, or material defined as toxic, explosive, corrosive, flammable, or hazardous by any federal, state, or local law, rule, or regulation, including the Washington Model Toxics Control Act (MTCA) and CERCLA.

Lease Expiration Date. The specific date on which the Term of the Lease naturally concludes and the Tenant must surrender the Premises back to the Landlord.

Lease Start Date. The specific date the Tenant is legally granted access to and takes possession of the Premises. (This is often earlier than the Rent Commencement Date to allow for Tenant Improvements or setup.)

Lease Terms Sheet. The deal-specific portion of the Commercial Lease Agreement, completed and signed for each tenant. It sets out the parties, premises, term, financial terms, permitted use, special conditions, notice addresses, and signatures, together with any attached Exhibits (such as the legal description, guaranty, work letter, or NNN amendment). Where the Lease Terms Sheet is silent, these Standard Lease Terms and the Definitions & Glossary control; in the event of a conflict, the Lease Terms Sheet prevails.

NNN Lease (Triple Net Lease). A lease structure under which Tenant pays Base Rent plus all property-level operating expenses directly, including real property taxes, insurance premiums, and maintenance costs, in lieu of (or as a substitute for) the standard CAM pass-through. Where elected in the Lease Terms Sheet (Financial Obligations), the provisions of Exhibit D of the Lease Terms Sheet apply.

Normal Wear and Tear. The expected, minor deterioration that occurs to the Premises simply from the day-to-day, reasonable use of the space over the Term (e.g., minor scuffs on the floor, slight fading of paint). It expressly does not include damages caused by negligence, heavy impact, lack of maintenance, or the removal of Trade Fixtures.

Permitted Use. The strictly defined, specific business activity that the Tenant is allowed to conduct within the Premises, as written in the Lease Terms Sheet.

Premises. The specific, exclusive physical footprint of space leased to the Tenant, usually defined by a suite number, address, or floor plan attached to the Lease Terms Sheet. All square footage figures stated for the Premises are approximate.

Proportionate Share. The fraction or percentage of the Building's total rentable square footage that is occupied by the Tenant. This percentage is used to calculate the Tenant's portion of the CAM Charges. Stated Proportionate Share percentages are based on approximate measurements and are conclusive for all purposes of this Lease.

Rent. A collective term encompassing both Base Rent and Additional Rent.

Rent Commencement Date. The specific date on which the Tenant's obligation to begin paying Base Rent and CAM Charges begins.

Security Deposit. A sum of money held by the Landlord throughout the Term of the Lease to cover any potential damages to the Premises, unpaid Rent, or other defaults by the Tenant upon the conclusion of the Lease.

Tenant Improvements (TIs). The initial construction, build-out, or remodeling work required to prepare the "As-Is" space for the Tenant's specific business operations prior to opening.

Term. The total duration of the Lease Agreement, measured from the Lease Start Date to the Lease Expiration Date.

Trade Fixtures. Items of personal property or equipment installed by the Tenant specifically for the conduct of their business (e.g., commercial espresso machines, specialized retail shelving, portable point-of-sale systems). Unlike Alterations, Trade Fixtures remain the property of the Tenant and must be removed at the expiration of the Lease, provided Tenant repairs any damage caused by their removal.

Utilities. The basic services delivered to the Premises or the Building for use by Tenant or in connection with the operation of the Premises. Utilities generally include water, electricity, sewer, and garbage/dumpster service. Any additional services, exceptions, exclusions, or different allocations of responsibility between Landlord and Tenant shall be set forth in the Lease Terms Sheet or the applicable Exhibit, which shall control.

End of the Standard Lease Terms and Definitions & Glossary, Version 1.6.